Tentative Rulings for July 9, 2026
Department 7

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 766 6465

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2104285	ZAMARRIPA VS XTRACTOR DEPOT LLC	MOTION FOR LEAVE TO FILE CROSS COMPLAINT

Tentative Ruling: GRANTED AS UNOPPOSED. WILL NOT CHANGE TRIAL DATE.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402162	JONES VS SIENS	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling: PROOF OF SERVICE: Proper

Grant the motion. Overrule Defendant's objections.

Plaintiff Samuel L. Jones alleges negligence against Defendants Kenneth John Siens and Skeeter Trucking seeking damages related to a car accident on January 8, 2023. Plaintiff alleges Siens was driving a 2020 Peterbilt Tractor with a bronze Mack Dump trailer in the course and scope of his employment for Skeeter Trucking when his truck collided with Plaintiff's car.

Plaintiff is eighty years old and seeks trial preference under CCP §36(a). Plaintiff asserts he suffers from interstitial lung disease (ILD), Type 2 diabetes, and hypertension. The motion is supported by a declaration from Dr. Anil Date, M.D., who states Plaintiff "suffers from a rapidly diminishing reserve of the physical and cognitive stamina required to endure stressful or prolonged environments, such as trial." (Date Decl. ¶6.) It is Dr. Date's professional opinion that "Mr. Jones's health is in a precarious and declining state. If this matter is delayed beyond the next 120 days, it is highly probable that Mr. Jones will lack the physical capacity, respiratory stamina, and cognitive endurance required to meaningfully participate in his own trial or assist his counsel." (¶7.)

Defendant Kenneth John Siens dba Skeeter Trucking opposes the motion. Defendant argues Dr. Date's opinion is not enough to warrant trial preference because Dr. Date did not physically examine Plaintiff and only offered speculative predictions regarding Plaintiff's future medical conditions. Defendant also filed objections to Dr. Date's declaration.

In Reply, Plaintiff argues Defendant's objections are moot because the motion relies on Plaintiff's Department of Veterans Affairs' medical records which are in Defendant's possession. The Reply also includes the declaration of Ari E. Moss to authenticate the VA records.

Plaintiff brings this motion pursuant to CCP §36(a), which provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2); §36(f).) Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; no weighing of interest is involved. (*Fox v. Superior Court (Metalclad Insulation, LLC)* (2018) 21 Cal.App.5th 529, 534.) The purpose of trial preference under Section 36 is "to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress." (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Here, there is no dispute that Plaintiff is 80 years old. It is quite clear that Plaintiff has a substantial interest in the action and his health is such "that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2).) There is also no dispute that Plaintiff has a substantial interest in this action. The salient question is whether Plaintiff's health makes preference "necessary to prevent prejudicing his interest in the litigation." (*Id.*) Pursuant to CCP § 36.5 "[a]n affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney or the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of the party." Importantly, the *Fox* Court noted that the standard under CCP "subdivision (a), unlike under subdivision (d), which is more specific and more rigorous, includes no requirement of a doctor's declaration." (*Fox, supra.*)

The court previously heard and denied Plaintiff's motion for trial preference because the motion was only supported by an attorney declaration that did not contain sufficient evidence to support granting trial preference. However, the instant motion is supported by Dr. Date's declaration that clearly states trial preference is necessary. (Date Decl. ¶8.) Defendant takes issue with the fact that Dr. Date only reviewed Plaintiff's medical records and conducted a telehealth visit and did not examine Plaintiff personally. There is no such requirement for granting trial preference. In fact, a motion for trial preference can be based solely upon an attorney's declaration. Plaintiff has provided authenticated copies of his medical records from the VA (Moss Decl. ¶4, Ex. A) and Dr. Date explained their ultimate medical opinion was based on those records and the conversation they had with Plaintiff. (Date Decl. ¶¶4-5, 7-8.) Plaintiff has met his burden to entitle him to trial preference.

3.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2507054	MINTZ VS JON ZORN DBA HUMMINGBIRD MHP INC.	MOTION TO COMPEL & REQUEST FOR SANCTIONS

Tentative Ruling: PROOF OF SERVICE: Proper

DENY

This appears to be a wrongful eviction action. On December 31, 2025, Plaintiff Florinda Mintz, *in pro per* ("Plaintiff") filed a Complaint for intentional tort, harassment, and emotional distress against Defendant Jon Zorn dba Hummingbird MHP, Inc. ("Defendant"). In the Complaint, Plaintiff alleges that she owns a mobile home in the Hummingbird Mobile Home Park, and Defendant wrongfully evicted her from the mobile home park in retaliation for her complaints to appropriate agencies about safety hazards in the foundation of the mobile home park.

On March 23, 2026, Plaintiff served Defendant with "Case Discovery/Production of Documents/Request for Evidence." On April 28, 2026, Defendant served objections, and in response, on May 30, 2026, Plaintiff served a "Response to Defendant's Objections to Her Request of Evidence and Second Request for Discovery Production of Documents."

Plaintiff moves to compel Defendant to provide substantive responses to her discovery and for sanctions pursuant to C.C.P. §§ 128.5 and 128.7, arguing that Defendant provided baseless objections and counsel acted inappropriately.

In opposition, Defendant argues that the motion should be denied because: the discovery is not code-compliant and it is unclear whether the requests are interrogatories of requests for production of documents, so it is impossible to respond; he properly objected to the discovery; Plaintiff fails to provide a separate statement as required by CRC 3.1345; and there is no basis for sanctions.

In reply, Plaintiff argues that the amended motion she filed is the proper motion because the initial motion did not have sufficient information; the discovery only contains requests for production of documents, not interrogatories, and they are clear and concise; no separate statement was required because Defendant didn't produce any documents; and Defendant's counsel failed to meet and confer respectfully with her.

Defendant first argues Plaintiffs' motion should be denied because she failed to submit a separate statement in compliance with CRC 3.1345. This is correct.

CRC 3.1345(c) states that "[a] separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response." Rule 3.1345 also requires that the separate statement must include the text of each request/interrogatory, the text of each response, and the factual and legal reasons for compelling a further response. (*Ibid.*) A trial court is well within its discretion to deny a motion to compel discovery based on the party's failure to comply with the separate statement requirements of CRC Rule 3.3145(a). (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

Plaintiff argues that she was not required to file a separate statement because Defendant did not produce any documents in response to her discovery. This is incorrect. CRC 3.1345(a) states that "[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement," including a motion to compel further responses to interrogatories or RFPs. Plaintiff's motion seeks further responses to her discovery, so a separate statement is required. Plaintiff failed to provide any separate statement. On this basis alone, the motion can be denied.

A party may file a motion compelling further responses to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. § 2030.300(a), 2033.290(a).) In a motion to compel further responses to interrogatories, the burden is on the responding party to justify any objection or failure to answer the interrogatories fully. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Additionally, when responses to document requests have been timely provided but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion compelling further responses. (C.C.P. § 2031.310 (a).) In a motion to compel a further response to document requests, the moving party must state facts demonstrating good cause justifying the discovery sought by demonstrating relevance and specific facts justifying discovery. (C.C.P. §2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance." (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement." (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland*, *supra*, 25 Cal.App.4th at 98.)

In her discovery requests, Plaintiff includes a "request for direct evidence," including phone records from various dates; a "request for ancillary evidence pertaining to the case," including reports from various agencies; and a "request for Defendant's list of witnesses." (Mintz Decl., Ex. A.) In response, Defendant objects to the form of the requests, and also objects that they are vague, ambiguous, overbroad, and unduly burdensome; seek information that is privileged and/or protected; and seek information not within Defendant's possession, custody, or control. (Leahy Decl., Ex. A.) Contrary to Plaintiff's arguments, Defendant's objections appear to have merit.

The right to discovery in California is broad, in order to prevent gamesmanship and surprise at trial. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 535; *Greyhound Corp. v. Superior Court of Merced County* (1961) 56 Cal. 2d 355, 396, superseded by statute on other grounds.) Under the Discovery Act, "any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action." (C.C.P. §2017.010.) The party seeking discovery has the burden of establishing that the discovery sought is admissible or reasonably calculated to lead to the discovery of admissible evidence. (*Calcor Space Facility v. Superior Court* (1997) 53 Cal. App. 4th 216, 223-224; see also *Board of Registered Nursing v. Superior Court* (2021) 59 Cal. App. 5th 1011, 1039.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.4th 1113, 1117.) It is sufficient that the information sought might reasonably lead to admissible evidence. “In accordance with the liberal policies underlying the discovery procedures, doubts as to relevance should generally be resolved in favor of permitting discovery. (*Colonial Life & Accident Ins. Co. v. Superior Court* (1982) 31 Cal. 3d 785, 790.)

However, there are requirements for the form and content of interrogatories and requests for production of documents. C.C.P. § 2030.060 sets forth the requirements for interrogatories, stating that the interrogatories must identify the propounding party, the responding party, and the set number; they must be separately set forth and each one full and complete; they cannot include a preface or instruction; and they cannot be compound, conjunctive, or disjunctive. (C.C.P. § 2030.060(a)-(g).) Pursuant to C.C.P. § 2031.030, any demand for documents must identify the propounding party, the responding party, and the set number; each category of documents requested must be reasonably particularized; and a time and place for the inspection/production must be provided. (C.C.P. § 2031.030(a)-(c).)

Additionally, although Plaintiff is acting on her own behalf, without an attorney, *pro per* litigants is held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Furthermore, self-represented litigants are entitled to the same, but no greater consideration than an attorney or represented litigant [*In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830; see also, *Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 520], and they must comply with the rules of court to the same extent as an attorney [*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444].

In the present case, Plaintiff includes both requests for documents and interrogatories (i.e., a list of Defendant’s witnesses) in one document.[1] This is improper. Additionally, the requests are not clear, even with the lengthy, improper explanations included therein. (See, Mintz Decl., Ex. A.) Thus, the objections raised by Defendant are proper. Accordingly, the motion is denied on the merits as well.

Plaintiff also moves for sanctions pursuant to C.C.P. §§ 128.5 and 128.7, arguing that Defendant is abusing the discovery process and counsel is not communicating in good faith. Neither of these contentions has merit.

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[1] While Plaintiff argues that she did not propound any interrogatories in this case, in her discovery, she includes a “request for the Defendant’s list of witnesses,” and states “the defendant must provide the plaintiff with the names of his witnesses he has for this case. The defendant must provide a written explanation about what his witnesses are going to talk about.” (Mintz Decl., Ex. A, p. 4.) This is clearly an interrogatory. Additionally, while Plaintiff is entitled to know the identity of Defendant’s witnesses <u>once she propounds proper discovery</u>, she is not entitled to an explanation of the witnesses’ potential testimony in written discovery. If she wishes to obtain such information, she would need to take the deposition of the identified witnesses.

In a motion for sanctions, the moving party must first serve the motion for sanctions on the offending party at least 21 days before filing it; this safe harbor provision allows the opposing party to withdraw or appropriately amend the "challenged paper, claim, defense, contention or denial." (*Barnes v. Department of Correction* (1999) 74 Cal.App.4th 126, 130.) At the end of the 21-day waiting period, if the pleading is not withdrawn, the moving party may file the motion. (C.C.P. §128.7(c)(1); *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 698-99.) Here, there is no evidence that Plaintiff complied with the safe-harbor provision, so the motion is, again, denied on this basis.

Additionally, the motion based on C.C.P. §§ 128.5 and 128.7 is denied on its merits. Pursuant to C.C.P. § 128.7, an attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied certification as to its legal and factual merit, and a violation of this implied certification subjects the attorney and/or party to sanctions. (C.C.P. § 128.7; *Murphy v. Yale Materials Handling Corp.* (1997) 54 Cal.App.4th 619,623.) Under C.C.P. § 128.7, "there are basically three types of submitted papers that warrant sanctions: factually frivolous (not well grounded in fact); legally frivolous (not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law); and papers interposed for an improper purpose." (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 167.) Whether the paper or pleading is frivolous or improper is tested objectively. (*Bockrath v. Aldrich Chem. Co., Inc.* (1999) 21 Cal.App.4th 71, 82.) "A claim is objectively unreasonable if any reasonable attorney would agree that it is totally and completely without merit." (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 440 [internal quotation marks and citation omitted].) It is not necessary to demonstrate that the party acted in bad faith for C.C.P. § 128.7 sanctions. (*Id.* at 449.)

Under C.C.P. § 128.5(a), "[a] trial court may order a party, the party's attorney, or both, to pay reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." An action or tactic is brought in bad faith, if it is done for improper purposes, like harassment or delay. (*Bach v. McNelis* (1989) 207 Cal.App.3d 852, 876.) The term frivolous in § 128.5 is defined as "totally and completely without merit or for the sole purpose of harassing an opposing party." (C.C.P. § 128.5(b)(2).) The moving party has the burden to establish that the opposing party's conduct was frivolous, made in bad faith, or done solely to cause unnecessary delay. (*Id*.) Sanctions under C.C.P. § 128.5 are discretionary, and the court is not required to issue any sanctions, monetary or otherwise. (C.C.P. §§ 128.5(a), 128.7(a); *Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 421.)

Here, there is no evidence that the discovery responses or Defendant's meet and confer efforts were objectively frivolous or made in bad faith. Therefore, there is no basis for sanctions under C.C.P. §§ 128.5 and/or 128.7, and the motion is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601445	BERNAL VS REEL FATHERS RIGHTS APC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: PROOF OF SERVICE: Proper

GRANT, Defendant's request for judicial notice as to the existence of the document but not as to the truthfulness of its contents or the proper interpretation of the document. (*Fremont Indem. Co. v. Fremont Gen. Corp*. (2007) 148 Cal.App.4th 97, 113.)

DENY, the motion as there is evidence of both procedural and substantive unconscionability. For this reason alone, the motion must be denied.

This is an employment law case. Plaintiff Bryan Bernal worked for Defendant Reel Fathers Rights APC, a family law firm, as a legal secretary and paralegal. Plaintiff alleges various Labor Code violations, like failure to provide rest and meal periods, as well as harassment claims.

Defendant brings the instant motion to compel arbitration based on a Mutual Agreement to Mediate and Arbitrate that Plaintiff signed while employed by Defendant. The Agreement first requires the parties to work through any issues informally with management of the company. Then, if that is unsuccessful, the parties agree to submit their claims to mediation. Finally, "[i]f the parties are unsuccessful in resolving the matter through mediation, then Employer and Employee hereby agree to arbitrate any and all claims covered by this Agreement and that such arbitration shall be the sole and exclusive remedy for resolving any and all such claims or disputes." (Reel Decl. Ex. A ¶1.) The Agreement specifically states it covers claims arising out of anti-harassment statutes, claims for wrongful termination, wage and hour claims under the California Labor Code, and any other common law tort claims. (Ibid.)

Defendant notes the original agreement Plaintiff signed inadvertently did not include the arbitration's governing rules, so Defendant updated its agreement and delivered the updated agreement to all employees, including Plaintiff. Plaintiff was sent an email that said: "in accordance with a newly added clause, the arbitration agreement will become binding and enforceable seven days after you receive it, even in the absence of a signature." Plaintiff viewed the email but did not sign the updated agreement. (Hemsley Decl. ¶¶7-8, Ex. D at p. 53.)

Defendant asks the court to compel Plaintiff to arbitrate his individual claims, while separating out Plaintiff's non-individual claims. Defendant argues that the agreement is valid, enforceable, and not unconscionable.

Plaintiff opposes the motion. Plaintiff first argues the court and not the arbitrator should decide enforceability. Second, Plaintiff argues the agreement is procedurally unconscionable for two reasons. Third, Plaintiff argues the agreement is substantively unconscionable for six independent reasons. Finally, Plaintiff argues the agreement cannot be saved by severance.

Defendant's Reply argues Plaintiff admits the agreement is valid and enforceable. Defendant argues Plaintiff's unconscionability arguments fail.

Upon the motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co*. (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; *see also Condee v. Longwood Mgmt. Corp*. (2001) 88 Cal.App.4th 215, 218-19.)

"In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability . . . Parties may submit declarations when factual issues are tendered with a motion to compel arbitration." (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, "the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

Defendant asks the court to take judicial notice of the court's April 2, 2026, ruling in another case – CVRI 2506443. Specifically, Judge Ottolia granted Defendant's motion to compel arbitration in another matter against another employee.[2] While the court can take judicial notice of this ruling as it is a court record and subject to judicial notice under Evidence Code §452(d), the court cannot take judicial notice of the truth of the contents therein. Accordingly, Defendant's request for judicial notice as to the existence of the document is granted but not as to the truthfulness of its contents or the proper interpretation of the document. (*Fremont Indem. Co. v. Fremont Gen. Corp*. (2007) 148 Cal.App.4th 97, 113.)

Both the Federal Arbitration Act ("FAA")[3] and the California Arbitration Act require the existence of a valid arbitration agreement, before arbitration can be compelled. (See

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[2] The arbitration agreement in this case is essentially the same as the arbitration agreement in the other matter. While Judge Ottolia granted the motion in another case, the Plaintiff, in the other case, may not have made similar arguments concerning substantive unconscionability or other issues that Plaintiff makes in this case.

[3] Defendant argues that the FAA applies because the agreement arose in the context of an employment relationship and specifically states that the FAA applies. (Motion, p. 14:5-10.) The FAA generally governs arbitration in written contracts involving interstate commerce and authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. §2.) The FAA also applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89,*

9 U.S.C. §2 and Code Civ. Proc., §1281.2) The party seeking to compel arbitration has the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence. (CCP § 1281.2; *Ruiz v. Moss Bros. Auto Group* (2014) 232 Cal.App.4th 836, 842.) California Rules of Court, Rule 3.1330 provides that a party seeking to compel arbitration must attach a copy of the agreement to the petition or the petition must set forth the provisions of the agreement. The moving party needs only to allege the existence of an agreement, and once they have done so the burden shifts to the responding party to prove the falsity of the purported agreement. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

In the present case, Defendant attaches a copy of the arbitration agreement to its motion and properly authenticates the agreement. (Reel Decl. at ¶ 5, Ex. A.) Defendant has met its burden of establishing an arbitration agreement exists. (See, *Condee*, *supra*, 88 Cal.App.4th at 218–19.) The burden then shifts to Plaintiff to offer admissible evidence to challenge the authenticity of the agreements. (*Ivere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) Plaintiff does not challenge the existence of the agreement. Accordingly, Defendant has established that an arbitration between the parties to arbitrate the present claims exists.

Plaintiff argues the arbitration agreement is both procedurally and substantively unconscionable and, as a result, cannot be enforced. If an arbitration agreement satisfies the minimum requirements for validity, as here, it must be enforced unless the party opposing enforcement can prove that the agreement is both procedurally and substantively unconscionable. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; *Armendariz*, *supra*, 24 Cal.4th at 94.) Plaintiff, as the party opposing arbitration, bears the burden of proving unconscionability. (*Szetela v. Discover Bank* (2002) 97 Cal.App.4th 1094, 1099.)

"The procedural element of an unconscionable contract generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it." (*Little v. Auto Stiegler, Inc.* (2001) 29 Cal.4th 1064, 1071 [internal quotation & quotation marks omitted].) "Substantive unconscionable terms may take various forms but may generally be described as unfairly one-sided." (*Id.* at 1071–72.) "[P]rocedural and substantive unconscionability must *both* be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (*Armendariz*, *supra*, 24 Cal.4th at 114 [internal quotation omitted] [italics in original].)

In an unconscionability analysis, "a sliding scale is invoked whereby the more procedurally oppressive the arbitration clause is, the less evidence of substantive unconscionability is required to warrant the conclusion that the agreements to arbitrate are unenforceable." (*McManus v. CIBC World Markets Corp. (*2003) 109 Cal.App.4th 76, 91.) "In other words, the more substantively oppressive the contract term, the less

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LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 355.) As the agreement states that "[e]mployee and employer acknowledge and agreement that the arbitration and this Agreement shall be controlled and governed by the Federal Arbitration Act," the FAA applies. (Reel Decl. Ex. A at ¶ 5.) As the application of the FAA is not relevant to the issues involved in this motion, it will not be discussed further.

evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) "Although both elements must be present before a contract or contract provision is rendered unenforceable on grounds of unconscionability, they are reviewed in tandem such that 'the greater the degree of substantive unconscionability, the less the degree of procedural unconscionability that is required to annul the contract or clause.'" (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329.)

Procedural unconscionability is generally satisfied if the contract was an adhesion contract. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1280-1281, fn. 11.) A contract of adhesion is a standardized contract that relegates the individual with less bargaining strength to either accept the terms as is, with no opportunity to negotiate or to reject the agreement. (*Armendariz*, *supra*, 24 Cal.4th at 113.) The adhesive nature of a contract establishes some degree of procedural unconscionability. (*Sanchez*, *supra*, 61 Cal.4th. at 915.) Such contracts in the employment context, in which employees may feel significant economic pressure to agree to the arbitration requirement, show some degree of procedural unconscionability. (*Carmona*, *supra*, 226 Cal.App.4th at 84.)

Plaintiff argues the agreement is procedurally unconscionable for two reasons. First, Plaintiff argues the agreement is adhesive and did not provide any opt-out provision or negotiation mechanism. Defendant's motion makes clear the initial arbitration agreement was presented to Plaintiff in June 2024 when Defendant updated its agreement and required all employees to sign the newest version. (Reel Decl. ¶5.) All employees were required to sign the agreement as a condition of continued employment. (Ibid.) This demonstrates a degree of procedural unconscionability. (*OTTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 [an arbitration agreement required as a condition of employment is adhesive].)

Plaintiff also argues the agreement's concealment of the applicable rules constitutes egregious procedural unconscionability. Plaintiff references the fact that the initial arbitration agreement he signed indicated arbitration was to be governed pursuant to the Model Rules for Arbitration of Employment Disputes of Judicate West. (Reel Decl. Ex. A at ¶5(g).) The agreement indicated the rules were attached to the agreement, but that was not the case. (Hemsley Decl. ¶¶5-6, Ex. C.) However, the failure to attach the arbitration rules, without more, is insufficient to show unconscionability. (*Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1472; *Lane v. Francis Capital Management, LLC* (2014) 224 Cal.App.4th 676, 690.) Additionally, Defendant seems to have rectified this issue by updating its arbitration agreement and sending out the updated version to employees in September 2024. (Hemsley Decl. ¶¶5-6, Ex. C.)

Even with established procedural unconscionability, Plaintiff still must establish substantive unconscionability to defeat the instant motion. (*McManus, supra*, 109 Cal.App.4th at 91.)

Substantive unconscionability refers to terms that may be described as unfairly harsh or one-sided. (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071.) "A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be so one-sided as to shock the conscience." (*Pinnacle Museum Tower v. Pinnacle Market Development* (2012) 55 Cal. 4th 223, 246.)

In assessing substantive unconscionability, the "paramount consideration" is mutuality of the obligation to arbitrate. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1287.) "[I]t is unfairly one-sided for an employer with superior bargaining power to impose arbitration on the employee as plaintiff but not to accept such limitations when it seeks to prosecute a claim against the employee, without at least some reasonable justification for such one-sidedness based on 'business realities.'" (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 117.)

Specifically, an arbitration agreement that requires an employee to arbitrate any and all claims against the employer or its officers, trustees, administrators, employees or agents, in their capacity as such of otherwise, but does not require these people to arbitrate claims against the employee is not sufficiently mutual. (*Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 326.) While a nonsignatory may enforce an arbitration agreement against a party to the agreement as a third-party beneficiary, the party would not be able to enforce the agreement against the agents and employees without showing that they actually accepted a benefit under the agreement. (*Id*. at 328.)

Plaintiff argues the agreement is substantively unconscionable in six ways.

First, Plaintiff argues the agreement's indefinite nature and unilateral modification provision make it oppressive and illusory**.** Generally, "[a] contract is unenforceable as illusory when one of the parties has the unfettered or arbitrary right to modify or terminate the agreement or assumes no obligations thereunder." (*Harris v. Tap Worldwide, LLC* (2016) 248 Cal.App.4th 373, 385; see also, *Peleg v. Neiman Marcus Group, Inc.* (2012) 204 Cal.App.4th 1425, 1465.) The Agreement states: "This Agreement can be modified only by a written document signed by the Clinical Director of the Company and Employee; *provided however*, Employer may amend or modify this Agreement at any time upon written notice to Employee in order to comply with the law and/or for other legitimate business reasons." (Reel Decl., Ex. A at ¶ 14.)

However, as the court in *Peleg* noted, "… a unilateral modification provision that is silent as to whether contract changes apply to claims, accrued or known, is impliedly restricted by the covenant so that changes do not apply to such claims." (*Peleg*, *supra*, 204 Cal.App.4th at 1465.) Furthermore, after *Peleg,* California courts consistently reason that the covenant of good faith "prevents [a party] from modifying an arbitration agreement once a claim has accrued or become known to it." (*Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1474; *Cobb v. Ironwood County Club* (2015) 233 Cal.App.4th 960, 965-966; *Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 61.) The unilateral modification provision in this case is silent as to whether it applies to claims, accrued or known, meaning the covenant of good faith applies. The arbitration agreement is not illusory or unconscionable on this basis.

Plaintiff also argues that the arbitration agreement is unconscionable because it lacks a temporal limitation, citing *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. In *Cook*, *supra*, the court found that the arbitration agreement at issue was unconscionable for several reasons, including a lack of mutuality because it required the employee to arbitrate all claims against employer and its agents, etc. without giving the employee the same right; it required the employee to arbitrate claims completely unrelated to his employment; it survived the term of the employee's employment; and it could only be terminated by the employer. (*Cook*, *supra*, 102 Cal.App.5th at 321, 325-326, 328.)

Here, the arbitration agreement states that it applies to disputes arising out of Plaintiff's employment with Defendant and there is no lack of mutuality. (Reel Decl., Ex. A at ¶ 1.) Furthermore, while it does not provide a specific end date, since it only applies to employment related claims, it clearly ends when the statute of limitations on any employment claims ends. Thus, it is not indefinite. The agreement is not unconscionable on this basis.

Second, Plaintiff argues the private notice and mediation machinery creates a claims forfeiture trap. Plaintiff notes the agreement requires informal management resolution, mandatory mediation, a written mediation demand with factual details, then a separate notice of intent to arbitrate. (Reel Decl. Ex. A. ¶4.) Plaintiff contends failure to follow this procedure waives an employee's right to assert claims at all but does not cite to any corresponding language in the agreement. Plaintiff references *Nyulassy v. Lockheed Martin Corp*. (2004) 120 Cal.App.4th 1267, 1282, where the Court of Appeal found an employment agreement that required Plaintiff to submit to discussions with his supervisors in advance of, and as a condition precedent to, resolving his dispute through arbitration was substantively unconscionable. The court noted this provision was concerning because defendant would receive a "free peek" at plaintiff's case before the matter was submitted to arbitration, which would give the employer an advantage. (Id. at 1282-1283.) The same concern exists here. Plaintiff was first required to work directly with management to resolve his claims informally and then submit to mediation before even getting to arbitration. This necessarily would give Defendant a look into Plaintiff's claims and the strength of his arguments. This constitutes substantive unconscionability. Defendant argues the agreement does not require Plaintiff to pursue informal resolution or mediation before beginning arbitration since there is no punishment if Plaintiff were to go straight to arbitration. (Reply p.8:1-8.) However, the agreement in this case is very similar to the agreement in *Nyulassy*. Both agreements indicate the employee "shall" first resort to informal methods of resolution before moving on to either mediation (this case) or arbitration (*Nyulassy*). There was no stated "punishment" in the *Nyulassy* agreement for failing to first attempt informal resolution. The court still found it was substantively unconscionable. The same result is appropriate here.

Third, Plaintiff argues the attorney fee clause violates FEHA**.** Paragraph 6 of the agreement provides: "Each party shall pay its own attorneys' fees. However, if any party prevails on a statutory claim which affords the prevailing party attorneys' fees, the arbitrator shall award reasonable attorneys' fees to the prevailing party." Plaintiff argues this is unlawful as applied to FEHA and other asymmetric fee statutes. The California

Supreme Court has found: “an arbitration agreement imposed as a condition of employment cannot require an employee to pay attorney fees to the employer in the arbitration of a statutory claim, unless the arbitrator finds that the action was frivolous, unreasonable, or groundless when brought, or that the employee continued to litigate after it clearly became so.” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 508.) Here, the arbitration agreement says the arbitrator “shall award” fees to the prevailing party on statutory claims *that afford the prevailing party attorney fees*. (Reel Decl. Ex. A. ¶6.) Reading the plain language of the agreement, attorney fees will only be awarded to the prevailing party if the statute permits the prevailing party to recover attorney fees. This does not run afoul of FEHA and is different than the fee provision in the arbitration agreement in *Ramirez*. This is not substantively unconscionable.

Fourth, Plaintiff argues the administrative agency monetary relief waiver is unlawful. The paragraph Plaintiff challenges begin by acknowledging the parties understand and agree disputes arising under any law that permits resorting to an administrative agency may be brought before that agency as permitted by law. This applies to agencies like the National Labor Relations Board, the Equal Employment Opportunity Commission, the California Civil Rights Department, the United States Department of Labor, the California Workers’ Compensation Appeals Board, the California Employment Development Department, and the California Division of Labor Standards Enforcement. Then, the agreement states once the parties have exhausted administrative remedies through the applicable agency, the parties must pursue any claims through the arbitration procedure set forth in the agreement. The final line in the paragraph is what Plaintiff objects to: “Employee understands and agrees that Employee cannot obtain any monetary relief or recovery from any such proceeding.”

Plaintiff argues “[p]rivate arbitration agreements cannot strip public agencies of their statutory authority to obtain victim-specific monetary relief.” (Opp. p.8:25-26.) Defendant argues the agreement appropriately restricts Plaintiff’s ability to obtain double monetary recovery – once with the administrative agency and again in arbitration. Plaintiff relies on *EEOC v. Waffle House, Inc.* (2002) 534 US 279, 297: “The only issue before this Court is whether the fact that [employee] has signed a mandatory arbitration agreement limits the remedies available to the EEOC. The text of the relevant statutes provides a clear answer to that question. They do not authorize the courts to balance the competing policies of the ADA and the FAA or to second-guess the agency’s judgment concerning which of the remedies authorized by law that it shall seek in any given case.” The Supreme Court also noted any relief the employee may have obtained by litigating their case would be limited from obtaining individual relief in a subsequent EEOC action based on the same claims. (Id. at 296-297, citing *EEOC v. US Steel Corp.* (1990) 921 F.2d 489, 495.)

Defendants’ argument in support of this provision is not persuasive. Defendant has not provided any legal authority to support completely limiting an employee who signed a private arbitration agreement from any monetary recovery in an administrative agency proceeding. This provision is substantively unconscionable.

Fifth, Plaintiff contends the “employer” definition grants on way benefits to nonparties and affiliates**.** The agreement defines “employer” to include “present or former owner, officer, director, employee, board member, manager and/or supervisor, benefit plan administrator, sponsor, and/or fiduciary in their capacity as benefit plan administrators or as individuals acting on behalf of Employer and/or any other authorized agent of Employer." The term is further defined to include "any parent, subsidiary, affiliate and/or successor of Employer and any of their owners, officers, directors, board members, employees, managers, supervisors or agents." (Reel Decl. Ex. A ¶2.) Plaintiff argues this definition is overbroad. Plaintiff contends the agreement does not impose the same obligation on every affiliate, successor, owner, officer, agent, and benefit-plan actor to arbitrate its own claims against Plaintiff. Thus, the agreement is one-sided.

This argument is not persuasive. The agreement says the Employer and Employee agree to arbitrate their claims. All persons and entities that fall under the definition of "employer" would also have to arbitrate their claims against Plaintiff. This is not evidence of substantive unconscionability.

Finally, Plaintiff argues that the class, collective, and representative waiver is overbroad**.** Defendant notes its motion expressly acknowledged that California law prohibits compelling arbitration of non-individual representative PAGA claims so the motion only seeks to compel Plaintiff's individual claims. This is not unconscionable.

Ultimately, there is evidence of both procedural and substantive unconscionability. For this reason, the motion must be denied.